

amend a pleading is entrusted to the sound discretion of the trial court. *Hong Sang Market, Inc.*, *supra*, 20 Cal.App.5th at 488.

The motion is unopposed. Having considered the nature of the proposed amended pleading and the totality of the circumstances, including the current procedural posture of the case, the Court grants Plaintiffs' request for leave to amend their Complaint.

2. Motion to Continue Trial

The prior trial date has been vacated at this point and the Motion to Continue Trial is moot.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is GRANTED. Plaintiffs are granted leave to file an amended complaint herein. Such amended complaint shall be filed and served **within ten (10) days of notice of entry of this order.**
2. The Motion to Continue Trial is DENIED as moot.

4. 9:00 AM CASE NUMBER: C23-00358

CASE NAME: RAY SY VS. RODNEY DOTSON

***HEARING ON MOTION IN RE: TO CONTINUE TRIAL**

FILED BY: SEVILLA, GIN IVY

TENTATIVE RULING:

See Line 3 above.

5. 9:00 AM CASE NUMBER: C23-02467

CASE NAME: CHRISTINA CRAVAT VS. BIO-RAD LABORATORIES, INC.

***HEARING ON MOTION IN RE: LEAVE TO FILE A SECOND AMENDED COMPLAINT**

FILED BY: CRAVAT, CHRISTINA CUCCIA

TENTATIVE RULING:

Plaintiff Christina Cuccia Cravat's Motion for Leave to File a Second Amended Complaint (SAC) is **continued** by the Court to April 27, 2026, at 9:00 a.m.

California Rule of Court 3.1324 requires that a motion to amend be accompanied by a separate declaration specifying the effect of the amendment, why the amendment is necessary and proper, when the facts giving rise to the amended allegations were discovered, and the reasons why the request for amendment was not made earlier. The declaration must be signed under penalty of perjury. (Code Civ. Proc. § 2015.5.)

The Declaration of Michael J. Reed submitted in support of this motion is not signed under penalty of perjury and therefore lacks evidentiary value. The declaration otherwise substantially complies with Rule 3.1324(b), as it identifies the retained and new causes of action, explains that the amendment is necessary to consolidate all related claims consistent with the Court's consolidation order, and documents the meet-and-confer history in reasonable detail. A redline of the proposed SAC against

the FAC has already been submitted by Defendant as Exhibit 1 to the Carradero Declaration and is before the Court, addressing the Rule 3.1324(a) deficiency.

Counsel shall serve and file a supplemental declaration signed under penalty of perjury no later than April 17, 2026.

6. 9:00 AM CASE NUMBER: C24-00074
CASE NAME: NEXT LEVEL STRATEGIES, INC. VS. NEXTGEN LABORATORIES, A CALIFORNIA CORPORATION
***HEARING ON MOTION IN RE: AN ORDER TO SHOW CAUSE RE CONTEMPT AGAINST JOSEPH DEL SIGNORE RE SUBPOENA**
FILED BY: NEXT LEVEL STRATEGIES, INC.
TENTATIVE RULING:

Plaintiff and judgment creditor Next Level Strategies, Inc. (“Judgment Creditor”) filed a Motion for an Order to Show Cause re Contempt against Joseph del Signore re Subpoena on November 19, 2026 (the “Motion for OSC”). The Motion for OSC was initially set for hearing on April 6, 2026. Later the hearing date was reset by the Court on April 13, 2026.

Background

A money judgment was entered by the Court on May 14, 2024 (the “Judgment”) against defendant and judgment debtor NextGen Laboratories (the “Judgment Debtor”).

On August 12, 2024, the Court issued its Order to Appear for Examination directed to “Joseph Del Signore for NextGen Laboratories, a California corporation” (the “OEX”). The OEX was set for February 4, 2025.

The Judgment Creditor served a Civil Subpoena dated August 15, 2024 directed to “Joseph Del Signore President, NextGen Laboratories, a California corporation” with an address in Newport Beach, California (the “Subpoena”). See Declaration of Bryan D. Sampson and filed November 19, 2025, **Exhibit 3**; see also Affidavit filed December 12, 2025.

The Subpoena demands production of various documents, including various financial records (the “Records Sought”). *Id.* at **Exhibit 3**, Attachment 2.

The OEX and Subpoena were personally served on Joseph Del Signore. *Id.* at **Exhibit 4**.

On February 4, 2025 there was no appearance by Judgment Debtor for the OEX. The Court issued a bench warrant warning letter. See Minute Order dated February 4, 2025. The OEX was continued to March 4, 2025. *Id.*

There was no appearance at the continued OEX and the Court ordered a bench warrant be issued (to be prepared by counsel for Plaintiff with the related required paperwork). See Minute Order dated March 4, 2025.

Analysis

Disobedience of a subpoena duly served may be punished as a contempt of court. Code Civ. Proc. § 1991 (“Disobedience to a subpoena, or a refusal to be sworn, or to answer as a witness, or to subscribe an affidavit or deposition when required, may be punished as a contempt by the court issuing the subpoena.”); Code Civ. Proc. § 1209(a)(10) (“The following acts or omissions in respect to a court of justice, or proceedings therein, are contempts of the authority of the court: [¶]”).